

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 9, 2026 TIME: 8:30 A.M.

pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.”

“If a defendant’s cause of action against plaintiff is related to the subject matter of the complaint, it must be raised by cross-complaint; the failure to plead it will bar defendants from asserting it in any later lawsuit. [CCP §426.30, see *AL Holding Co. v. O’Brien & Hicks, Inc.* (1999) 75 Cal.App.4th 1310, 1313-1314.]” (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) § 6:511.) Thus, defendant’s proposed cross-complaint is compulsory. “[I]f the proposed cross-complaint is compulsory, leave must be granted so long as defendant acted in good faith. [Citations.]” (*Id.* at §6:555.) This case is relatively new as it was filed on December 22, 2025, and defendant just answered April 21, 2026. This motion was brought shortly after defendant retained new counsel. The Court does not find that the cross-complaint would greatly expand the scope of the case because defendant’s claims arise out of the same altercation as plaintiff’s claims. The Court finds defendant acted in good faith in filing the answer and then this motion. There is no trial date set and no other parties to the case. Practically, it makes sense to have all the claims arising out of this incident adjudicated in one case.

The motion is granted. Defendant is directed to file his proposed cross-complaint within 10 days. Plaintiff shall file a responsive pleading within 30 days from the date the cross-complaint is filed.

No. 25CV03871

BOSWORTH v. CITY OF SANTA CRUZ

DEFENDANT CITY OF SANTA CRUZ’S DEMURRER TO FIRST AMENDED COMPLAINT

The demurrer is sustained without leave to amend.

Plaintiff sued the City of Santa Cruz (“the City”) for one cause of action for violation of Cal. Constitution, Art. I, section 7(a), alleging that the City’s current plurality voting method should be prohibited and the Court should order it to use proportional ranked-choice voting. The City demurred to the complaint, and the Court sustained that demurrer with leave to amend. The Court found that the complaint failed to identify a class for equal protection purposes.¹

¹ The original Complaint defined the class as “all voters in the City of Santa Cruz whose votes, by the structural operation of the at-large plurality system, are guaranteed to carry zero weight in electing any member of the City Council.”

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Plaintiff filed this first amended complaint (“FAC”) and identified the class as “[a]ll registered voters in the City of Santa Cruz whose ballots in city council elections supported candidates who did not receive a plurality of votes and were therefore not elected.” (FAC at ¶ 8.) Plaintiff alleges that the current voting method results in vote dilution for voters who voted for unsuccessful candidates.

The City again demurs to the FAC, arguing that the FAC failed to address the Court’s prior order, sustaining its demurrer. The City contends the FAC did not change the class definition from the Court’s prior ruling which found that the shared characteristic of the class was the asserted harm. That is, the class is defined “as those who voted for losing candidates, and thus Plaintiff exclusivity defined the class by the harm its members allegedly suffer.” (Demurrer at p. 2-3.) Further, the City asserts the FAC fails to allege unequal treatment for equal protection purposes because the alleged unequal treatment via vote dilution fails because it does not alleged facts demonstrating that a person’s vote has less power than another person’s vote.

As the Court previously noted, “[i]n equal protection analysis, the threshold question is whether the legislation under attack somehow discriminates against an identifiable class of persons.” (*Altadena Library Dist. v. Bloodgood* (1987) 192 Cal. App. 3d 585, 590.) This class of persons “must have some common characteristic other than the fact that they are assertedly harmed.” (*Vergara v. State of California* (2016) 246 Cal.App.4th 619, 646 [emphasis added].) Plaintiff explicitly defines the class by the harm its members allegedly suffer but provides no other common characteristic. The shared characteristic of failing to vote for a successful candidate fails to satisfy the requirement of being “identifiable by a shared trait other than the violation of a fundamental right.” (*Id.* at p. 647.) Here, plaintiff’s alleged class is defined as “voters who elected zero representatives, comprising approximately 40% of all voters.” (FAC at ¶ 6.) This class definition appears to be the same or significantly the same as that in the original complaint, which the Court found to be deficient.

“[T]he burden is on plaintiff show in what manner plaintiff can amend the complaint, and how the amendment will change the legal effect of the pleadings. [Citations.] (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) §7:130.) The Court does not find plaintiff articulated how he could amend the FAC to properly assert a claim under the equal protection clause, so the demurrer is sustained without leave to amend.